



NATIONAL ACCOUNTABILITY (AMENDMENT) ORDINANCE, 2010.

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NATIONAL ACCOUNTABILITY (AMENDMENT) ORDINANCE, 2010

ORDINANCE NO. XVIII OF 2010

An Ordinance further to amend the National Accountability Ordinance, 1999

WHEREAS it is expedient further to amend the National Accountability Ordinance, 1999 (XVIII of 1999), for the purpose hereinafter appearing;

AND WHEREAS the National Assembly and the Senate are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:--

1. Short title and commencement.- (1) This Ordinance may be called the National Accountability (Amendment) Ordinance, 2010.

(2) It shall come into force at once.

2. Amendment of section 16A, Ordinance XVIII of 1999.- In the National Accountability Ordinance, 1999 (XVIII of 1999), hereinafter referred to as the said Ordinance, in section 16A, after subsection (a), the following new subsection shall be inserted, namely:

"(aa) Power of Federal Government to transfer cases.--Notwithstanding anything contained in any other law for the time being in force, where a new Accountability Court(s) has been established at any place, the Federal Government may by order transfer cases and proceedings pending before other Accountability Court(s) to such newly established Court(s) relating to its territorial jurisdiction and it shall not be necessary for such Court(s) to recall any witness again or to record any evidence that may have been recorded."

3. Substitution of section 31E, Ordinance XVIII of 1999.- In the said Ordinance, for section 31E the following shall be substituted, namely: -

"31E. Protection of witnesses etc.- The Government, Chairman NAB or the Court, within available resources, may in the facts and circumstances of a case take such measures as may be considered necessary for the safety, security and protection of witnesses, Judges, public prosecutors, counsel and their families."

4. Omission of section 33A.- In the said Ordinance, section 33A shall be omitted.
